

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 7/31/2026 10:00 AM

#	Case Name	Tentative
1	Matthew P. Wade, in his capacity as TRUSTEE of the ML Wade Family Trust under the provisions of a trust agreement dated September 12, 2013 vs. Scott English Plumbing Inc. 30-2024-01448700-CU-BC-CJC	Motion to Appear Pro Hac Vice The application of attorney Joseph L. McGlynn to appear pro hac vice as counsel for non-party intervening plaintiff Azguard Insurance Company in this matter is hereby DENIED. Mr. McGlynn states he has not filed any applications in Orange County, California. The rule requires disclosure of applications filed in the state, not merely in a particular county. (See Cal. Rules of Court, rule 9.40(d)(5).) The application is also premature. Mr. McGlynn seeks to appear pro hac vice to represent intervening plaintiff Azguard Insurance Company. However, Azguard is not

		yet a party to this action. Its motion to intervene will be heard on 8/7/2026. Clerk to give notice.
2	Pedroza vs. First National Insurance Company of America 30-2025-01529067-CU-PO-CJC	Motion to Be Relieved as Counsel of Record The motion of attorney Tina Abdolhosseini to withdraw as attorney of record for plaintiff Rosa Maria Pedroz is DENIED. Counsel did not sign the notice of motion or the supporting declaration and failed to check any of the boxes under items 3, 4, and 6 regarding service, the next hearing and trial, respectively. Counsel also failed to file a proof of service showing service on both Plaintiff and Defendant. (See Cal. Rules Court, rules 3.1300(c), 3.1362(d).) Clerk to give notice.
3	Spencer vs. Fowler 30-2026-01556002-CU-PO-CJC	Motion for Leave to File Amended Complaint Plaintiff Jessica L. Spencer's motion for leave to file a proposed first amended complaint is GRANTED. Plaintiff is ORDERED to designate the proposed amended complaint as the "first amended complaint" as required by California Rules of Court, rule 3.1324(a)(1) and to file the original and serve a copy within 5 days. Clerk to give notice.
4	Oh vs. Chen 30-2025-01521231-CU-CL-CJC	Motion to Set Aside/Vacate Default and Judgment Defendant Binbing Chen's motion for an order setting aside the entry of default and default judgment is DENIED. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. (<i>Summers v. McClanahan</i> (2009) 140 Cal.App.4th 403, 413.) The proof of service filed by plaintiff on November 24, 2025 shows defendant was personally served with the summons and complaint at her residence in Irvine on November 20, 2025. (ROA 19.) Service was effectuated by a registered process server, Fernando Garcia, and

		plaintiff submits the declaration of Garcia with the opposition to the motion. (ROA 106.) Garcia declares plaintiff's counsel gave him the address for service and on the day reflected on the POS, he went to the address and personally served defendant with the summons and complaint and other documents, including plaintiff's application for a right to attach order. Defendant's conclusory declaration, "I was not personally served with the summons and complaint on November 20, 2025, or on any other date" and "[n]o process server personally handed me the summons and complaint" (ROA 91) is not credible. The court's minute order of March 6, 2026 (ROA 29) reflects defendant was present with her daughter at the hearing on plaintiff's application for the right to attach order. The court denied defendant's request for a continuance of the hearing based on defendant's representation she only learned of the action after being in China from "the end of December to the end of February." The court noted defendant was personally served on November 20, 2025 and "the summons clearly states defendant has 30 days to file an answer" and no answer was on file at the time of the hearing. Given defendant's appearance at the hearing on the application for the right to attach order and the court's comments to the defendant, the court rejects defendant's contention she did not have actual notice of the action in time to defend. Default was not entered until March 25, 2026. Even if she could not file a responsive pleading within the time required after service of the summons and complaint, she had ample time to file a responsive pleading after the hearing where she was placed on notice by the court. Clerk to give notice.
5	Haddadin vs. Labella 30-2025-01500533-CU-FR-CJC	Motion to Set Aside/Vacate Default and Judgment Defendant Robert LaBella's Motion for Relief from Entry of Default is DENIED. Defendant has failed to establish a proper ground for relief from default. Defendant's motion argues he was unable to attend a case management conference. Default was entered due to his failure to file an answer, and he has not shown his failure to file an answer was due to mistake, neglect, or inadvertence pursuant to Code of

		Civil Procedure, section 473 subdivision (b); invalid service pursuant to Section 473 subdivision (e); or for extrinsic fraud or mistake. (See <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1300.) Clerk to give notice.
6	Bank Of America, N.A. vs. Yun 30-2022-01274061-CU-CL-CJC	Motion to Set Aside/Vacate Dismissal and Enter Stipulated Judgment Defendant, Bank of America N.A.'s motion for an order vacating the dismissal of the action and entering judgment against defendant Sun M. Yun under the terms of the stipulation agreement between the parties is GRANTED. The court dismissed the case with a reservation of jurisdiction under Code of Civil Procedure section 664.6 on 3/14/2023. The dismissal is VACATED. Defendant is ORDERED to submit a proposed judgment for \$10,060.00, consisting of \$9,041.50 in unpaid principal plus court costs of \$1,018.50 claimed in memo of costs, within 5 days. Clerk to give notice.
7	Providence Capital Funding, Inc. vs. Lozamira Inc., a California Corporation 30-2025-01484900-CU-BC-CJC	Motion to Set Aside/Vacate Default Judgment Defendants' Motion to Vacate Default Judgment is DENIED. Plaintiff's objections to defendants' declaration are SUSTAINED. Defendants Lozamira Inc.; Rosa Lozano; MA E. Miramontes Gamboa also known as Maria Miramontes and as Enriqueta Miramontes; and Gerardo Lozano, Jr. move to vacate the default judgment entered against them on 4/27/2026 pursuant to Code of Civil Procedure sections 473, subdivisions (b) and (d), and 473.5, and on equitable grounds of extrinsic fraud. Defendants' motion is not accompanied by admissible evidence. Nor is it accompanied by a proposed answer. (See Code Civ. Proc., §§ 473, subd. (b), 473.5 subd. (b).) In addition, defendants filed the instant motion in pro per. However, "a corporation cannot represent itself in a court of record either in propria persona or through an officer or agent who is not an attorney." (<i>Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.</i> (2002) 99 Cal.App.4th 1094, 1101.)

		Clerk to give notice.
8	Egan vs. Accurate Voting Services 30-2025-01532899-CU-PT-CJC	Motion for Determination of Director Validity Plaintiff, Brendan Paul Egan's motion for determination of director validity is DENIED. The motion is defective, because respondents were only served by mail, which is not authorized for the kind of relief sought. (See <i>Younger v. Jordan</i> (1954) 42 Cal.2d 757 [trial court could not proceed to final determination of election controversy without personal or substituted service authorized by law].) The court notes respondents were served in January 2026 and have not yet appeared. OSC re dismissal (default of ALL respondents) set for 9/3/2026 at 1:30 PM. If respondents have not filed a responsive pleading prior to the OSC, the court will enter their default. Clerk to give notice.
9	Zavala vs. Price 30-2025-01451705-CU-PA-CJC	Motion to Consolidate Plaintiff Riordan Zavala's unopposed motion to consolidate is GRANTED. Case Nos. 30-2025-1451705 and 30-2026-01541665 are consolidated for all purposes. All future filings are to be made in the lower numbered case. Motion to strike in 30-2026-1541665 set for 8/7/2026 to remain on calendar in 30-2025-01451705. CMC in 30-2026-01541665 is VACATED. Trial is to remain on 9/11/2026 at 11:30 AM. Jury fees to be posted within 5 days. The clerk is directed to file the minute order in both cases. Clerk to give notice.
10	Masaoka vs. Life Storage, Inc. 30-2023-01364829-CU-PO-CJC	Motion to Dismiss Defendant/Cross-Complainant Life Storage, Inc.'s motion for dismissal is DENIED. Plaintiff is a vexatious litigant whose counsel has withdrawn. The court can dismiss the case and/or require a bond if it determines there is no reasonable probability

		plaintiff will prevail or if the case lacks merit and was filed to harass or delay. (Code Civ. Proc., § 391.3.) Plaintiff has presented evidence, albeit sparse, there may be a probability of prevailing. He declares defendant's loading dock floor was painted with a shiny epoxy paint to facilitate cleaning, which made the floor slippery. The floor was covered with twigs and dirt due to a windstorm and defendant's employee apologized for failing to clean the floor after plaintiff slipped on the debris. Plaintiff asserts his statements about the incident have been consistent because he slipped on the floor and his knee hit the low trailer edge. Plaintiff also submits the declaration of witness Ruby Hunter, who declares to witnessing defendant's on-site manager apologize to plaintiff about not cleaning the floor of the loading dock and stating a report would be filed. The court will not make a credibility determination at this stage of the litigation. The court and/or jury will determine credibility at trial. Clerk to give notice.
11	Ngo vs. Westminster Professional Associates, LLC 30-2023-01350083-CU-CO-CJC	Motion to Confirm Referee's Report and Recommendation Defendant, Westminster Professional Associates, LLC's belated motion to confirm referee's report and recommendation is DENIED. Defendant failed to follow the procedure set forth in Code of Civil Procedure section 643. Clerk to give notice.
12	Ramos vs. Hamel Concrete, Inc. 30-2025-01453311-CU-PO-CJC	Motion for Determination of Good Faith Settlement Defendants Kotobuki Seating International, Inc. fka Kotocorp (USA), Inc. and Interkal, LLC's motion for determination of good faith settlement as to their settlement with plaintiffs is DENIED. Defendants have not demonstrated the settlement was made in good faith under <i>Tech-Bilt, Inc. v. Woodward-Clyde & Assocs.</i> (1984) 38 Cal.3d 488, 499.) There is no copy of the settlement agreement provided to the court, no rough approximation of plaintiff's total recovery and settlor's proportionate liability, and no analysis of settling defendants' financial conditions and policy limits. Clerk to give notice.

13	Justice vs. Thiede 30-2023-01355666-CU-MM-CJC	Motion for Summary Judgment and/or Adjudication Continued to 8/7/2026 on court's own motion.
14	V. LYNN HODGE, as Trustee of the PLAZA DEL SOL REAL ESTATE TRUST UNDER DECLARATION OF TRUST DATED FEBRUARY 9, 1996 AS AMENDED, a California Revocable Trust vs. OC MEDIA TOWER, L.P. 30-2021-01227550-CU-FR-CJC	Motion for Summary Judgment/Adjudication Continued to 8/7/2026 upon parties' stipulation.